

RVL FUNDING, INC.

<https://www.rvlfunding.com/>

MEMORANDUM · 咨询意见书

美国加州公司注册咨询及服务报价

California Corporate Formation Advisory and Schedule of Professional Fees

致 / TO	客户（拟设立加州公司之投资人） / Client (Prospective California Entity Investor)
发件人 / FROM	RVL FUNDING, INC.
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I. 公司介绍

I. FIRM OVERVIEW

公司介绍: <https://www.rvlfunding.com/>

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II. 在美国加州注册公司的主要考虑事项

II. KEY CONSIDERATIONS IN FORMING A COMPANY IN CALIFORNIA

在美国加州设立公司时，通常需要综合考虑公司类型、股东及管理结构、经营活动、资本安排，以及联邦和加州税务等因素。

The formation of an entity in California generally requires consideration of, among other factors, the choice of entity, the shareholder and governance structure, the intended business activities, capitalization, and both federal and California tax consequences.

A. 公司类型选择

A. Choice of Entity

C Corporation (C 公司)：属于独立的法律及纳税主体，公司自行申报并缴纳企业所得税。C Corp 通常更适合计划在美国长期经营、雇佣员工、设立办公室或仓库、引入投资人或未来融资的企业。公司层面可能缴纳企业所得税；如果以后向股东分红，股东层面还可能产生股息税，因此存在“双重征税”的可能。需要注意的是，即使公司不分红，公司本身仍需就应税利润缴纳企业所得税；不分红主要意味着股东通常不会在当期产生股息税。

C Corporation. A C corporation is a separate legal entity and a separate taxpayer; it files its own returns and pays corporate income tax at the entity level. A C corporation is generally better suited to businesses that intend to operate in the United States on a long-term basis, hire employees, establish an office or warehouse, admit investors, or raise capital in the future. Corporate income tax may be imposed at the entity level, and if dividends are subsequently distributed to shareholders, a further shareholder-level tax on dividends may arise, giving rise to the possibility of “double taxation.” It should be noted that a corporation remains liable for corporate income tax on its taxable income even where no dividends are distributed; the absence of distributions generally means only that shareholders will not incur a current dividend tax.

S Corporation (S 公司)：通常属于税务穿透实体，利润和部分损失由股东在个人层面申报，从而避免传统 C Corp 的公司层面与股息层面双重征税。但 S Corp 对股东资格有严格限制，非美国税务居民 (nonresident alien) 通常不能作为 S Corp 股东，因此一般不适用于由中国非美国税务居民个人直接持有的情形。

S Corporation. An S corporation is generally a pass-through entity: its profits, and certain of its losses, are reported by the shareholders at the individual level, thereby avoiding the entity-level and dividend-level double taxation associated with a traditional C corporation. An S corporation is, however, subject to strict shareholder eligibility requirements. A nonresident alien generally may not hold shares in an S corporation, and this structure is therefore ordinarily unavailable where the shares are held directly by a PRC individual who is a nonresident alien for U.S. tax purposes.

Limited Liability Company (LLC)：法律结构灵活，并提供有限责任保护。由单一外国个人持有的 Single-Member LLC 在联邦税务上通常默认属于 disregarded entity（忽略实体），其美国经营所得在满足相关条件时可能直接归属于外国个人股东，并可能涉及美国个人所得税申报。外国个人持有的美国 disregarded LLC 还通常需要关注 Form 5472 及 pro-forma Form 1120 等信息申报要求。是否需要申请 ITIN，应根据股东是否实际产生美国个人报税义务等具体情况判断，而不是成立 LLC 本身即必然需要 ITIN。

Limited Liability Company (LLC). An LLC provides a flexible legal structure together with limited liability protection. A single-member LLC held by a single foreign individual is generally treated by default as a disregarded entity for U.S. federal tax purposes; where the relevant conditions are satisfied, its U.S. business income may be attributed directly to the foreign individual owner and may give rise to U.S. individual income tax filing obligations. A U.S. disregarded LLC owned by a foreign individual is also generally subject to information reporting requirements, including Form 5472 and a pro forma Form 1120. Whether an ITIN is required should be determined by reference to the particular circumstances — in particular, whether the owner in fact has a U.S. individual filing obligation — rather than assumed to follow automatically from the formation of the LLC.

针对中国个人股东的通常建议

General Recommendation for PRC Individual Shareholders

对于中国个人、目前不是美国税务居民的情况，如果计划在美国成立一家实际经营并长期发展的公司，我们通常会优先考虑 C Corporation，而不是由个人直接持有的 Single-Member LLC。主要原因是 C Corp 本身属于独立的美国纳税主体，公司自行报税并缴纳企业所得税，目前联邦企业所得税税率一般为 21%。相比之下，Single-Member LLC 的税务结果可能直接穿透至外国个人，使股东本人可能需要在美国申报个人所得税，跨境税务处理也相对更复杂。C Corp 能够更清晰地地区分公司层面与股东个人层面的税务，对于未来雇佣美国员工、设立办公室或仓库、开设银行账户、融资或引入投资人等安排，通常也更标准、更便于长期管理。具体采用哪一种结构，仍应结合预计利润、是否分红、实际经营地点及中美两地税务情况综合判断。

Where a PRC individual is not presently a U.S. tax resident and intends to establish a company in the United States that will carry on actual operations and develop over the long term, we would ordinarily give preference to a C corporation rather than to a single-member LLC held directly by the individual. The principal reason is that a C corporation is itself a separate U.S. taxpayer that files its own returns and pays corporate income tax, the federal rate currently being generally 21%. By contrast, the tax consequences of a single-member LLC may pass through directly to the foreign individual, with the result that the shareholder may be required to file a U.S. individual income tax return, and the cross-border tax treatment is comparatively more complex. A C corporation draws a clearer distinction between the entity level and the shareholder level for tax purposes and is generally the more standard and more readily administered structure for future arrangements such as hiring U.S. employees, establishing an office or warehouse, opening bank accounts, obtaining financing, or admitting investors. The structure ultimately adopted should nevertheless be determined in light of projected profits, whether distributions will be made, the actual place of operations, and the tax position in both the United States and the PRC.

B. 股东、董事及管理结构

B. Shareholders, Directors and Governance

- 一般而言，加州 C Corp 的股东和董事并不要求必须是美国居民。

As a general matter, the shareholders and directors of a California C corporation are not required to be U.S. residents.

- LLC 的成员可以是个人、公司或其他符合条件的实体。

The members of an LLC may be individuals, corporations or other eligible entities.

- Corporation 通常由董事会负责重大事项的监督和决策，由 officers（如 President、Secretary、Treasurer 等）负责日常经营管理。

A corporation is generally governed by a board of directors, which supervises and determines material matters, while officers (such as the President, Secretary and Treasurer) are responsible for day-to-day management.

- 公司需要在加州指定符合要求的 Agent for Service of Process（注册代理人）。

The corporation must designate a qualifying Agent for Service of Process in California.

C. 经营范围

C. Scope of Business

- 公司设立、税务登记、银行开户及后续合规过程中，通常需要说明主要业务活动。

The company's principal business activities will generally need to be described in connection with formation, tax registration, bank account opening and ongoing compliance.

- 如从事受监管行业，还应确认是否需要额外的行业许可证、州或地方执照。

If the company will operate in a regulated industry, it should further confirm whether additional industry permits or state or local licenses are required.

D. 注册资本

D. Capitalization

- 加州一般没有统一的最低注册资本要求。

California generally imposes no uniform minimum capitalization requirement.

- 实际投入资金应结合公司的业务类型、运营计划、银行开户及初期运营成本综合确定。

The amount actually contributed should be determined in light of the company's line of business, operating plan, bank account requirements and initial operating costs.

E. 美国联邦及加州主要税务

E. Principal U.S. Federal and California Taxes

- 联邦企业所得税：C Corp 目前一般按 21% 的联邦企业所得税率对其应税利润缴税。

Federal corporate income tax: a C corporation is currently taxed on its taxable income at a federal corporate income tax rate of generally 21%.

- LLC：税务处理取决于成员人数、税务分类以及股东身份。Single-Member LLC 默认通常为 disregarded entity，但也可在符合条件的情况下选择其他税务分类。

LLC: the tax treatment depends on the number of members, the entity's tax classification and the status of its owners. A single-member LLC is generally treated by default as a disregarded entity, although another tax classification may be elected where the applicable conditions are satisfied.

- 加州公司税：一般 C Corp 的加州企业所得税税率为 8.84%，并应关注加州最低特许经营税等要求。

California corporate tax: the California corporate income tax rate applicable to a C corporation is generally 8.84%, and attention should be paid to the California minimum franchise tax and related requirements.

- 加州 LLC：通常需要注意每年最低 \$800 的 annual tax；达到一定加州总收入水平时，还可能产生额外 LLC fee。

California LLC: an annual tax of a minimum of \$800 generally applies each year, and an additional LLC fee may arise once California total income reaches specified thresholds.

- **销售税：**如果公司在加州或其他州销售应税商品或提供应税服务，并在相关州形成 sales tax nexus，可能需要办理销售税登记、向客户收取销售税并按期申报缴纳。

Sales tax: if the company sells taxable goods or provides taxable services in California or in another state and establishes sales tax nexus in the relevant state, it may be required to register for sales tax, collect sales tax from customers, and file and remit such tax on a periodic basis.

III. 服务报价及预计时间

III. SCHEDULE OF FEES AND ESTIMATED TIMING

以下为目前拟定的服务报价。政府处理时间、银行审核时间及税号申请时间可能因个案和主管机关处理进度而有所变化。

Set out below is our currently proposed schedule of fees. Government processing times, bank review times and the time required to obtain a tax identification number may vary depending on the individual matter and on the processing times of the relevant authorities.

服务项目 SERVICE	报价 FEE	预计时间 / 说明 ESTIMATED TIMING / NOTES
加州公司注册服务 California Entity Formation	\$750	预计约 1 周完成；建议在正式报价中明确是否包含政府规费、首份 Statement of Information 及注册代理人服务。 Approximately one week. We recommend that the definitive fee proposal specify whether government filing fees, the initial Statement of Information and registered agent services are included.
外国股东公司税号（EIN）申请 Employer Identification Number (EIN) Application — Foreign-Owned Corporation	\$200	预计约 4 周；实际时间取决于 IRS 处理进度。 Approximately four weeks; actual timing depends on IRS processing.
银行开户协助 Bank Account Opening Assistance	无额外费用 No additional charge	我司可介绍合作银行，由客户直接与银行对接并完成开户及 KYC 审核。 We can introduce partner banks; the client deals directly with the bank to complete account opening and KYC review.
年度合规 / 年检服务 Annual Compliance / Annual Filing Services	\$150	建议明确具体包含的年度州级申报项目及是否包含政府规费。 We recommend specifying the state-level annual filings included and whether government fees are covered.

服务项目 SERVICE	报价 FEE	预计时间 / 说明 ESTIMATED TIMING / NOTES
年度税务申报 Annual Tax Return Preparation	\$1,500 起 From \$1,500	根据公司类型、营业规模、交易复杂程度及跨境申报要求确定最终费用。 Final fees to be determined by reference to entity type, scale of operations, transaction complexity and cross-border reporting requirements.
其他税务及会计咨询 Other Tax and Accounting Advisory	\$200 / 小时 \$200 per hour	按实际咨询时间计费。 Billed on the basis of time actually incurred.

说明：上述内容为一般性公司设立及税务说明，不构成对任何特定事实情形的最终税务或法律意见。具体公司类型、股东结构及申报要求应根据客户的身份、实际经营活动、预计利润、资金安排及中美两地税务情况进行进一步确认。

Note: The foregoing constitutes general information regarding entity formation and taxation and does not constitute a final tax or legal opinion with respect to any particular set of facts. The appropriate entity type, shareholder structure and filing requirements should be further confirmed by reference to the client's status, actual business activities, projected profits, funding arrangements and tax position in both the United States and the PRC.

谨此致意,
Very truly yours,

RVL FUNDING, INC.

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